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April 22, 2025

BILL NO. 2647

By: Harris and Adams of the
House

and

Thompson of the Senate

An Act relating to children; updating reference; providing that this section shall apply to immediate relatives; providing for noncodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Shai Cooper Act".

SECTION 2. AMENDATORY 10 O.S. 2021, Section 7505-5.2, is amended to read as follows:

Section 7505-5.2. A. If a preplacement home study is not waived by the court for good cause shown or is not required by Section ~~29~~ 7505-5.1 of this ~~act~~ title, the court, upon the filing of a petition for adoption, shall order that a home study be made and filed with the court by the designated investigator within the time fixed by the court, and in no event more than sixty (60) days from

1 the issuance of the order for the home study, unless the time
2 therefor is extended by the court.

3 B. If the child to be adopted is the biological or adopted
4 child ~~of either~~ or immediate relative of the petitioners or of the
5 spouse of the petitioner, then the court, upon the submission of an
6 application, by order may waive the requirement in subsection A of
7 this section that a home study report be made, and the requirement
8 for a supplemental report set forth in subsection C of Section ~~31~~
9 7505-5.3 of this ~~act~~ title, if the court makes the following
10 findings:

11 1. That waiver of the home study requirement is in the best
12 interest of the child;

13 2. ~~That~~ If applicable, that the parent of the child and the
14 stepparent of the child, or the immediate relative of the child and
15 the spouse of the immediate relative who are petitioning for
16 adoption have been married for at least one (1) year with the child
17 who is to be adopted living in their home; provided, however, that
18 this provision shall not be construed as a prohibition against a
19 single, immediate relative from requesting waiver of a house study;
20 and

21 3. That the stepparent or immediate relative or spouse of the
22 immediate relative who is petitioning for adoption has no record of
23 conviction of a felony or conviction or adjudication in juvenile
24 court for child abuse or neglect or domestic violence, and there is

1 no record of a protective order or orders issued against the
2 stepparent or immediate relative or spouse of the immediate
3 relative.

4 In all other adoptions, including foster, ~~relative, and~~
5 ~~stepparent~~ adoptions, a home study and report shall be made pursuant
6 to this section or Section ~~29~~ 7505-5.1 of this ~~act~~ title.

7 C. For purposes of this section, immediate relative shall mean
8 the brother, sister, grandparent, aunt, or uncle of the child.

9 SECTION 3. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
11 April 22, 2025 - DO PASS
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